

Navin Kumar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 9 February 2016 · WRIT - C No. 37884 of 2013 · **Writ dismissed; assessment left to Clause 6.5 / s.127.**

HEADNOTE

A writ to quash an electricity assessment order is not maintainable when Clause 6.5 of the U.P. Electricity Supply Code, 2005 and Section 127 of the Electricity Act, 2003 furnish a statutory alternative remedy, all the more where the petition has lingered for years without interim protection.

FACTUAL SUMMARY

Navin Kumar filed a 2013 writ at Allahabad seeking quashing of the assessment order dated 12 December 2012 of the Executive Engineer, Urban Electricity Distribution Division-II, Aligarh. On 16 July 2013 a Division Bench gave U.P. Power Corporation two weeks to place the 7 October 2012 checking report on record. No interim order followed. The petition was still pending in February 2016 before another Division Bench.

HOLDING-UNITS

INTERPLAY · UP-2005::6.5

writ against assessment; alternative remedy

HOLDING

A writ petition seeking quashing of an Executive Engineer's assessment order is dismissed where the consumer has a statutory alternative remedy under Clause 6.5 of the Electricity Supply Code, 2005 and Section 127 of the Electricity Act, 2003, and where years of pendency without interim relief mean consequential recovery must be taken to have followed. ¶ 1

FLAG Court cites Clause 6.5 and s.127 in the alternative against an 'assessment order' without saying whether the demand was a billing objection (6.5) or a s.126 assessment (s.127).

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ to quash an electricity assessment order is not maintainable when Clause 6.5 of the U.P. Electricity Supply Code, 2005 and Section 127 of the Electricity Act, 2003 furnish a statutory alternative remedy, all the more where the petition has lingered for years without interim protection. ¶ 1

relegate-to-statutory-remedy A writ to quash an electricity assessment order is not maintainable when Clause 6.5 of the U.P. Electricity Supply Code, 2005 and Section 127 of the Electricity Act, 2003 furnish a statutory alternative remedy, all the more where the petition has lingered for years without interim protection. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE 12.12.2012 ASSESSMENT ORDER

Merits not examined; petitioner left to Clause 6.5 / s.127. ¶ 1